

Tara Chand Shivnani S/O Lat. Phattumal ... vs Santokaba Memorial Hospital Cum ... on 24 December, 2025

1

jkT; miHkksDrk fookn izfrrks" k vk;ksx] t;iqj

le{k%&

ekuuh; Jh v#.k dqekj vxzoky] lnL; ¼U;kf;d½

ekuuh; Jherh d:.kk tSu] lnL;

ifjokn la[;k%& 160@2019

- 1- Jherh rqylh f'koukuh iRuh Loå Jh rkjkpUn f'koukuh] tkfr&Çlèkh] fuoklh&104] rqylh iSysl] xkaèkhuxj] vtesj jksM+] C;koj] ftyk vtesj ¼jktå½ A
- 2- Jh Hkjr f'koukuh iq= Loå Jh rkjkpUn f'koukuh] tkfr&Çlèkh] fuoklh&104] rqylh iSysl] xkaèkhuxj] vtesj jksM+] C;koj] ftyk vtesj ¼jktå½ A
- 3- Jh yksds'k f'koukuh iq= Loå Jh rkjkpUn f'koukuh] tkfr&Çlèkh] fuoklh&104] rqylh iSysl] xkaèkhuxj] vtesj jksM+] C;koj] ftyk vtesj ¼jktå½ A
- 4- Jh rkjkpUn f'koukuh ¼nksqgjkus ifjokn e`rd½ iq= Loå Jh QÜkwey f'koukuh] fuoklh&104] rqylh iSysl] xkaèkhuxj] vtesj jksM+] C;koj] ftyk vtesj ¼jktå½ A

ifjoknhx.k

cuke

- 1- larksdck ngyZHKth eseksfj;y g,fLiVy de esfMdy fjlpZ bUlhVîwV] Hkokuh Çlg ekxZ] jkeckx lÆdy ds ikl] t;iqj A tfj;s & fpfdRlk vèkh{k d A
- 2- M,å jkts'k Hkkstokuh] ltZu] larksdck ngyZHKth eseksfj;y g,fLiVy- de esfMdy fjlpZ bUlhVîwV] Hkokuh Çlg ekxZ] jkeckx lÆdy ds ikl] t;iqj A

foi{k h x.k

mifLFkr%&

ifjoknhx.k dh vksj ls Jh Hkjr f'koukuh] vf/koDrkA

foi{k h la[;k 1 dh vksj ls Jh vfuy dqekj] vf/koDrkA

foi{k h la[;k 2 dh vksj ls Jh ds-vkj- xqtZj] vf/koDrkA

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jkT; miHkksDrk vk;ksx] t;iqj

ifjokn la[;k 160@2019

Jherh rqylh f'koukuh ,oa vU;

cuke

larksdck ngyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

cgl lquus dh fnukad %& 09-12-2025
fu.kZ; lqukus dh fnukad %& 24-12-2025

fu.kZ;

[}kjk%& ekuuh; Jherh d:.kk tSu] lnL;]

ifjoknhx.k }kjk foi{khx.k ds fo:) bl vk'k; dk ifjokn izLrq
fd;k x;k fd foi{khx.k izkbZosV fpfdRlk lsok iznku djrs gSa] mldk 'kqYd
ysrs gSaA ifjoknhx.k o foi{khx.k ds e/; miHkksDrk dk laca/k gSA foi{kh la[;k
1 gkWfLiVy gS vkSj foi{kh la[;k 2 ml gkWfLiVy esa ltZu MkWDVj gSA
ifjoknhx.k ds iq= 'kSysUnz mQZ ckykth] mez 35 o"kZ dh eksVkis dh chekj ls
ihfM+r gksus] mldk otu de djus ds fy, foi{khx.k dks pSdvi djok;k]
ftlds fy, cSjsfV^{ad} ltZjh djokus dh lykg nh x;h vkSj 2]25]000@&i;s
lEiw.kZ [kpkZ gksuk crk;kA
02- foi{khx.k gkWfLiVy esa gh muds iq= dh lHkh VsLV djus vkSj VsLV
ukWeZy o lgh vkus ij gh ifjoknhx.k ds iq= dh cSjsfV^{ad} ltZjh fd;s tkus
vU;Fkk 1&2 ekg dh nokbZ;ki fy[k nsus dk dgk x;k vkSj tc ltZjh dks
mi;qDr ekuk tk,xk] rc gh ltZjh fd, tkus dk vk'oklu fn;k x;kA lHkh
tkaps blh iSdst esa 'kkfey gksuh crk;hA fnukad 24-05-2018 dks nksigj djhc
12 cts foi{kh la[;k 1 ds ;gka ij 'kSysUnz dks gkWfLiVy esa HkrhZ dj;k x;k]
ftls fyfDoM MkbZV ij j[kk x;kA fnukad 25-05-2018 ls fnukad 28-05-2018
rd lHkh tkaps o VsLV dh x;h vkSj mu tkap fjiksVZ dk voyksdu djus ij
ukWeZy tkap fjiksVZ gksuk ,oa cSjsfV^{ad} ltZjh esa fdLh izdkj dk [krjk o fjLd
ugha gksuk crkrs gq, fnukad 30-05-2018 dks ifjoknh ds iq= 'kSysUnz mQZ
ckykth dh cSjsfV^{ad} ltZjh dj nh x;h rFkk ltZjh ds ckn vkbZ-lh-;w- esa
f'k¶V dj fn;k x;k rFkk 31-05-2018 dks mls okMZ esa f'k¶V dj fn;k x;kA

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jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck ngyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

fnukad 02-06-2018 dks yhd VsLV ds ckn mldh d.Mh'ku ukWeZy crk;h x;h
vkSj ukfj;y ikuh o nky dk ikuh fiyk;k x;k] Bksl vkgkj ugha fn;k x;kA
03- fnukad 02-06-2018 dks jk=h djhc 12 cts 'kSysUnz dh rch;r vpku
fcxM+us yxh] ftls vkbZ-lh-;w- esa f'k¶V fd;k x;k] foi{kh la[;k 2 ls VsyhQksu
ls lEidZ djus dh dksf'k'k dh x;h iarq lEidZ ugha gqv] uk gh oSdfYid
fpfdRld dk foi{khx.k gkWfLiVy us dksbZ bartke fd;k] uk gh fo'ks"kk dh
fpfdRlk lsok,a miyC/k djok;h] ?kksj ykijokgh ds dkj.k 'kSysUnz dh rch;r
jkrHkj esa vksj fcxM+ x;hA fnukad 03-06-2018 ls fnukad 06-06-2018 rd
mls vkbZ-lh-;w- esa j[kk x;k iarq lE;d lrZdrk o mfpr lko/kkuh cjrrs
gq, leqfpr mipkj ugha fd;k x;kA fnukad 03-06-2018 dks foi{khx.k us
crk;k dh muds iq= ds ;wfju vkuk can gks x;k gS] ch-ih- Hkh de gks x;k

gS] vkWdLhtu dh deh gks x;h gS] ftl dkj.k ls mls osaVhysVj ij j[kk x;k
gSA ifjoknh ds iq= dks baQDs 'ku gksuk crk;k o Mk;ysfll Hkh fd;k x;kA
04- fnukad 05-06-2018 dks izkr% 10&11 cts ifjoknhx.k dks lwfpr fd;k
x;k fd vkWijs'ku esa xyrh gks tkus ds dkj.k gkyr [kjc gks x;h gS] isV
esa fyfDoM bDV~Bk gksuk crk;k vkSj ltZjh dks iqu% [kksydj ns[kk tkuk
vko';d gksuk crk;k vkSj lkFk gh 'kSysUnz ds thou dks [krjk gksuk vkSj
cpus dk 1 izfr'kr pkal gksuk crk;kA bl ij ifjoknh ds }kjk ,l-,e-,l
gkWfLiV ds fo'ks"kk MkWDVj thou dkaDfj;k dks foi{kx.k dh lgefz ls
cqyok;k x;k] ftlus 'kSysUnz ds vkWijs'ku ds nks fLVp [kksydj ;a= Mkydj
vanj dh fLFkfr Kkr djus dh lykg nh] blesa foi{kx la[;k 2 lger ugha
gqvk vkSj foi{kx.k }kjk bykt esa cjrj x;h ?kksj ykijokgh ds dkj.k fnukad
06-06-2018 dks djhc 12%25 cts jk=h dks 'kSysUnz mQZ ckykth dk fu/ku gks
x;kA

05- ;g rF; Hkh vafdr fd;k fd cSjsfVad ltZjh ds ckn lE;d lrdZrk]
mfpr lko/kkuh o ns[kHkky ugha dh x;h vkSj rch;r [kjc gksus ds mijkar
vkikrdkyhu ifjfLFkfr;ksa esa ugha laHkkyk x;k] oSdfYid fpfdRld dh
0;oLFk ugha dh x;h] le; ij mfpr bykt u gksus ls mldh fLFkfr fcxM+rh

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jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rpylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiV de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

pyh x;hA mlds 'kjhj esa vusd rjg dh 0;kf/k;k mRiUu gks x;h] tks fd
fo'ks"kk pfdRld dh lsok,a miyC/k u djkus ij foi{kx.k dk xaHkhj lsoknks"k
o ?kksj ykijokgh gksuk crk;kA
06- ;g Hkh vafdr fd;k x;k fd vkWijs'ku ls iwoZ 'kSysUnz iw.kZ LoLFk Fkk]
dksbZ xaHkhj chekj mls ugha FkhA vkWijs'ku ds ckn fLFkfr [kjc gksus dh
laHkkouk ifjoknhx.k dks ugha crk;h x;h Fkh] mldh fLFkfr vkWijs'ku ds ckn
D;ksa fcxM+h ;g Hkh ugha crk;k x;kA vkWijs'ku] vLirky esa HkrhZ] nokbZ;ks]a
tkap o VsLV ds [kpsZ dk iSdst 2]25]000@&i;s crk;k ijarq muds iq= dk
'ko nsus ls iwoZ 2]00]000@&i;s tcju olwy fd;sA cSjsfVad ltZjh ds nkSjku
cjrj x;h ykijokgh ds dkj.k ls ejht dh e`R;q;q dh ukScr vk;h gSA ltZjh
ls igys vkSj ltZjh ds ckn tks lrdZrk cjrj tkuh pkfg, Fkh] og ugha cjrj
x;h] tks ?kksj ykijokgh dk /;ksUkd gksuk crk;k] mls gk;j lsUVj ij Hkstk
tkuk pkfg, Fkk ijarq mldh e`R;q rd iz;ksx gh djrs jgsA ,e-vkj-vkbZ- vkfn
dk pSd ltZjh ds rqjar ckn ugha fd;k x;kA ;g ltZjh lQyrkiwoZd gqbZ gS
vFkok mlesa dksbZ deh rks ugha jg x;h gSA foi{kx.k us ifjoknhx.k ds iq=
dh e`R;q dk dkj.k lsfIVd 'kkWd o 'kjhj ds fofHkUu vax Qsy gks tkus ds
dkj.k e`R;q gksuh crk;h gS] tks fd cSjsfVad ltZjh ds ckn gh mRiUu gqbZ
fLFkfr gS] tcfd iwoZ esa 'kjhj ds lHkh vax lgh FksA uksfVl nsdj Li"Vhdj.k
Hkh pkgk x;k] ftldk dksbZ tokc foi{kx.k ds }kjk ugha fn;k x;kA
foi{kx.k dh lsok esa deh gksus ls {kfrwfrZ izkIr djus ds ifjoknhx.k vf/kdkjh
gSA ;g ifjokn vk;ksx ds {ks=kf/kdkj esa gS] vanj fe;kn gS] mfpr U;k;ky;
'kqYd ij izLrqr ifjokn gksuk crkrs gq, dqy 0;; 4]25]000@&i;s ?kksj
ykijokgh ds dkj.k iq= dh e`R;q gksus ls Vksdu euh 85]00]000@&i;s]
ifjokn 0;;] dkuwuh [kpZ o odhy Qhl vkfn ds 2]51]000@&i;s] dqy
91]76]000@&i;s dh ekax dh x;h gSA

07- foi{kh la[;k 1 o 2 us tokc ifjokn izLrqr dj dFku fd;k gS fd
us'kuy ba';ksjsal daiuh fyfeVsM ls muds }kjk yh xÅ çksQs'kuy baMsefuVh
ba';ksjsal i,fylh ½is'ksoj {kfriwÆr chek i,fylh½ ds rgr doj fd, x, gSaA

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jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

;g xyr fooj.k gS fd foi{khx.k us Jh 'kSysaæ f'koukuh ds mipkj esa
ykijokg cjrj x;h vkSj mudh e`R;q foi{khx.k }kjk çnku dh xÅ fpfdRlk
lsokvksa esa deh dk ifj.kke jgh gks A mu ij yxk, x, ykijokgh] dqçcaèku]
mis{kk] vlkoèkkuh vkSj lsokvksa esa deh ds vkjksiksa dk [kaMu fd;k A
08- foi{kh la[;k 1 larksdck nqyZHkth eseksfj;y vLirky lg fpfdRlk
vuqlaèkku laLFkku gS] tks jkT; dk ,d çeq[k vkSj vR;kèkqfud vLirky gS]
ftlesa & 80 fcLrjksa vkSj 6 fof'k"Vrkvksa ls 550 fcLrjksa vkSj yxHkx mu
lHkh fof'k"Vrkvksa rd tks fdlh Hkh LokLF; lsok laLFkku esa gksuh pkfg,A
foi{kh la[;k 2] M,- jkts'k Hkkstokuh ,d vR;fèkd vuqHkoh] dq'ky vkSj çfl)
is'ksoj :i ls ;ksX; ltZu gSaA mUgksua s 2002 esa SDMH, t;iqj esa jktLFkku
esa thvkÅ ½GI) ltZjh vkSj fefuey ,Dlsl ltZjh dk igyk foHkkx 'kq:
fd;k vkSj mUgsa 20]000 ls vfèkd tfVy isV dh çfØ;kvksa dk vuqHko gSA
muds usr`Ro okyk foHkkx jktLFkku jkT; ds vR;kèkqfud] rduhdh :i ls
lcls mUur v,ijs'ku fFk,Vjksa esa çfr o"kZ 2000 ls vfèkd tfVy v,ijs'ku
djrk gSA og thvkÅ dSalj] vYljsfVo dksykbFVL] vXuk'k; dh ltZjh vkSj
csfj,fVªd ltZjh ds fy, fefuey ,Dlsl ltZjh ds {ks= esa ,d çfl)
varjjk"Vªh; vkSj jk"Vªh; fo'ks"kk gSaA

09- foi{khx.k us Jh 'kSysaæ f'koukuh dks SDMH esa muds iwjs çokl ds
nkSjku ekud çfØ;k vkSj çksVksd,y ds vuqlkj mfpr vkSj lgh mipkj fn;k
Fkk vkSj muds mipkj ds fdlh Hkh pj.k es]a foi{khx.k }kjk çnku dh xÅ
lsok,a fdlh Hkh rjg ls de] ykijokg ;k vèkwjh ugÈ FkÈA ifjoknh ds csVs
Jh 'kSysaæ f'koukuh] ftldh mez 35 o"kZ vkSj otu 170 fdyksxzke Fkk] og
xaHkhj@vR;fèkd eksVkis ½eksÆCM vkscsfLVh½ vkSj vU; chekfj;ksa tSls dksj
iYeksusy ½fny dk vlkeU; c<+uk½] xaHkhj v,Dlhtu dh deh] rjy çfrèkkj.k
½fluid retention½] gkbiksFkk;jk;fMTe ½mPp Vh,l,p½] lsY;qykbFVL]
,fDtek vkSj nksuksa fupys vaxksa esa lwtu] v,ClVªfDVo Lyhi ,ifu;k] VkbI&II
'olu foQyrk vkSj lacfa èkr y{k.kksa vkSj fodkjksa ls ihfM+r Fks] ftlds fy,

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jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

ifjoknh us vius iq= 'kSysaæ f'koukuh ds mipkj ds fy, foi{khx.k ls laidZ

fd;k Fkka csfjfv^{ad} ltZjh ds fodYi dks pquus ds fy, jk"V^{ah}; vkSj varjjk"V^{ah}; ekud vkSj Loh--r ekunaM vuq'kalk djrs gSa fd ;fn 0;fä dk c,Mh ekl baMDs l ¼BMI½ 40 ;k mlls vfëkd gS(og xaHkhj :i ls eksVk gS ¼ÅapkÅ ds vuqlkj vkn'kZ otu ls de ls de 100 ikmaM vfëkd otu½] vkSj og eksVkis ls lacafëkr ,d ;k vfëkd chekfj;ksa tSls ân; jksx] eëkqesg] v,ClV^{af}DVo Lyhi ,ifu;k] fMfLyfiMsfe;k] xSLV^{aks},lksQx

s y fjlyDL jksx vkfn ls ihfM+r gSA

10- orZeku ekeys esa jksxh dk otu 170 fdyksxzke Fkk vkSj jksxh dk ch,evkÅ 55-5 Fkk] og xaHkhj :i ls eksVk Fkk ¼viiuh ÅapkÅ ds vuqlkj vkn'kZ otu ls yxHkx 200 ikmaM vfëkd½ vkSj og ân; jksx] v,ClV^{af}DVo Lyhi ,ifu;k] chekfj;ksa ls ihfM+r Fkka foi{kh la[;k 2 us jksxh ds fy, csfjfv^{ad} ltZjh ds fodYi dh flQkfj'k dh Fkh] D;ksfa d ,sls ekeyksa esa ;g mipkj dh varjjk"V^{ah}; Lrj ij Loh--r i)fr gSA eksÆcM vkscsflVh ds lÆtdy mipkj dks lqjf{kr vkSj çHkkoh ekuk x;k gS fd csfjfv^{ad} ltZjh ds fy, iSdst 'kqYd 2]25]000@& #i;s Fkk A iSdst 'khV ds vuqlkj iSdst esa 7 fnuksa dk vLirky çokl] 15]000@& #i;s rd dh ç;ksx'kkyk tkap] ,Dl&js] jsfM;ksy,th vkSj lksuksxzKQh tSlh tkap vkSj ijh{k.k] 10]000@& #i;s rd ds miHkksX; oLrq,a] bEIykaV vkSj nok,a vkfn 'kkfey FksA csfjfv^{ad} ltZjh iSdst 'khV dh çfr bls lFk layXu gS vkSj vuqçea k&R1 gSA

11- ejht dh fLFkfr rqjar csfjfv^{ad} ltZjh djkus ds fy, mi;qä ugÈ Fkh] ejht dks de ls de 5&7 fnuksa ds fy, vLirky esa v,ijs'ku ls igys HkrÈ gksus dh vko';drk gksxh vkSj ,sls çokl] nokvksa vkSj mipkj dk [kpZ vyx gksxk vkSj csfjfv^{ad} ltZjh ds iSdst ds vfrfjä gksxkA ejht dh v,Dlhtu dh deh vkSj rjy çfrëkkj.k dh leL;kvksa ds çcaèku vkSj mipkj dh çfØ;k iw.kZ ifj.kkeksa ;k dqy lqëkkj dh xkjaVh ugÈ nsrh gS vkSj ;g lc ejht dh 0;fäxr çfrfØ;k ij fuHkZj djsxkA fdlh Hkh çLrkfor mipkj ds xkjaVhd`r ifj.kke dk dksÅ oknk ;k vkÜoklu ugÈ fn;k Fkka csfjfv^{ad} ltZjh ds lkeU;

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jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

tskf[ke gSa tSls visf{kr otu de u gksuk] ?kko dk laøe.k] 'kjhj dh xggk tSls Nkrh ;k isV esa laøe.k] isV esa QksM+k cuuk] fueksfu;k] ân;] QsQM+]s ;--r] xqnZs] fiÜkk'k; vkSj ew=k'k; tSls vU; egRoiw.kZ vaxksa esa laøe.k] egRoiw.kZ vax foQyrk] iqu% v,ijs'ku dh vko';drk vkfn vkSj foLrkj ls le>k, x, FksA ifjokn us bu LHkh tskf[keksa dks iwjh rjg ls le>k vkSj iwjs ekeys vkSj fLFkfr dks iwjh rjg le>us ds ckn] csfjfv^{ad} ltZjh ds fy, vLirky ds lgefzr Q,eZ ij viuh lwfpr lgefzr nhA ifjokn }kjk gLrk{kfjr fnukad 29@05@2018 ds lgefzr Q,eZ dh çfr bls lFk layXu gS vkSj vuqcaèk&R2 gSA

12- ;fn ejht vLirky esa HkrÈ gksus vkSj mipkj ds çfr çfrfØ;k nsrk gS] vkSj mldh fLFkfr ltZjh ds fy, vuqdwy gks tkrh gS] rks csfjfv^{ad} ltZjh dh tk,xhA ifjokn us Åij crk, vuqlkj mls le>kÅ xÅ gj ckr dks le> fy;k vkSj Lohdkj dj fy;k] rHkh ejht dks csfjfv^{ad} ltZjh ds çcaèku vkSj vuqdwy ds fy, 24 eÅ 2018 dks SDMH esa HkrÈ fd;k x;k Fkka vuqdwy cukus gsrq rjy vkgkj 'kq: fd;k tk, A ifjokn dks csfjfv^{ad} ltZjh

ds fy, fyf[kr lgefr Q,eZ çnku fd;k x;k Fkk] ftlesa csfjfv^{ad} ltZjh ds
nkSjku vkSj ckn esa gksus okys lHkh laHkkfor tksf[keksa vkSj tfVyrkvksa dk
mYys[k Fkk vkSj lHkh tksf[keksa vkSj tfVyrkvksa dks iwjh rjg ls i<+us] ppkZ
djus vkSj le>us ds ckn gh] ifjoknh us vius csVs Jh 'kSysaæ f'koukuh ij
csfjfv^{ad} ltZjh djus ds fy, lgefr Q,eZ ij gLrk{kj fd, FksA ;g fd
24@05@2018 ls 29@05@2018 rd ejht dks SDMH esa j[kk x;k Fkk
vkSj mfpr mipkj vkSj nok,a nsdj] ejht dh fLFkfr esa lqèkkj vkSj mls
vuqdwY cukus ds fy, lHkh M,DVjksa vkSj 'kkfey ,tsfa l;ksa }kjk ,d Æekunkj
vkSj Bksl ç;kl fd;k x;k Fkk] lwpuK ifjoknh dks nh x^Å vkSj le>k;k
x;kA

13- pwfa d fiNys ikap fnuksa esa ejht dh fLFkfr esa dsoy ekewy@ux.;
lqèkkj gqvK Fkk] blfy, ltZjh esa vkSj nsjh djuk mfpr ug^È Fkk] blfy,

8

jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 16@0@2019
Jherh rpylh f'koukuh ,oa vU;
cuke
larksdck nqyZHKth eseksfj;y
gkWfLiVy de esfMdy fjlPZ
baLVhV~;wV ,oa vU;

ifjoknh ds funsZ'k vkSj lgefr ds vuqlkj fnukad 30@05@2018 dks ejht
dh csfjfv^{ad} ltZjh djus dk fu.kZ; fy;k x;kA iwjh fLFkfr vkSj vius csVs dh
'kkjhfd fLFkfr ds Kku] tkudkj vkSj le> ds lkFk] ifjoknh us fnukad
29@05@2018 dks ,usLFkhfl;k $\frac{1}{2}$ csGks'kh $\frac{1}{2}$ ds fy, lgefr Q,eZ ij gLrk{kj
fd,A ,usLFkhfl;k lgefr Q,eZ dh çfr bls lkFk layXu gS vkSj vuqcaèk&R3
gSA fnukad 30@05@2018 dks ejht dh csfjfv^{ad} ltZjh mfpr vkSj
lQyrkiwoZd dh x^Å Fkh A ejht ij çf0;k ds ckn] v,ijs'ku fFk,Vj esa gh
,d yhd VsLV fd;k x;k Fkk vkSj bls lkfcr gqvK fd çf0;k Bhd ls dh
x^Å Fkh vkSj isV ls dks^Å fjlko ug^È FkKA v,ijs'ku ds ckn] lkekU; fu;fer
çf0;k vkSj çksVksd,y ds vuqlkj] ejht dh xgu fuxjkuh ds fy, mls ,d
fnu ds fy, xgu fpfdRlk bdk^Å $\frac{1}{4}$ ICU $\frac{1}{2}$ esa LFkkukarfjr dj fn;k x;k FkKA
ukM+h] jâpki vkSj Üolu nj] v,Dlhtu Lrj vkSj ew= mRiknu fcuk fdlh
fo'ks"K nok lgk;rk ds lkekU; Fks] ftlls ladsr feyrK Fkk fd v,ijsfVo
çf0;k iwjh rjg ls dh x^Å Fkh vkSj ejht ltZjh ls vPNh rjg mcj x;k
FkKA

14- pwfa d v,ijs'ku LVhd vkSj mfpr :i ls fd;k x;k Fkk vkSj ejht ds
lHkh ekinaM lkekU; Fks] blfy, vxys fnu ;kuh fnukad 31@05@2018 dks
ejht dks vk^Ålh;w ls dejs esa LFkkukarfjr dj fn;k x;kA v,ijs'ku ds vxys
fnu ejht fcYdqY fLFkj Fkk vkSj mlds lHkh ekinaM lkekU; FksA tkap fjiksVks±
ls irk pyrk gS fd gheksXyksfcu 16-3 Fkk vkSj Vh,yLh $\frac{1}{4}$ dqY Y;wdkslkbV
dkmaV $\frac{1}{2}$ 9450@;wfuV Fkk ftlls ladsr feyrK gS fd v,ijs'ku Bhd ls fd;k
x;k Fkk vkSj dks^Å jâlzo vkSj la0e.k ug^È FkKA ejht dks vuq'kaflr ekunaMksa
vkSj çksVksd,y ds vuqlkj vkgkj fn;k x;k FkKA fnukad 01@06@2018 dks
mlus igyh ckj Åijh isV esa gYds nnZ dh f'kdK;r dhA mlds egRoiw.kZ
ekinaM lkekU; lhek ds Hkhrj Fks] isV uje Fkk vkSj Qwyk gqvK ug^È Fkk] vkSj
ew= mRiknu Hkh vPNk FkKA lkekU; çksVksd,y ds vuqlkj ,d yhd VsLV dh
lykg nh x^Å vkSj bls ifj.kke ls irk pyk fd isV dh LVsiy ykbu@Lyho

9

jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

ls dksA fjlko ugE Fkk] blfy, mls lkQ rjy inkFkZ ds ?kwaV ysus dh vuqefr
nh xA D;ksafd SDMH deZpkfj;ksa }kjk cLrkfor dh xA ysfdus ejht us
bls euk dj fn;ka ifjokn us Hkh euk dj fn;k vkSj vius csVs ds fy,
BiPAP lgk;rk dh vuqefr ugE nha ejht dh csgrjh vkSj HkykA ds fy,
BiPAP dh vko';drk Fkh] blfy, ifjokn }kjk bls badkj dks fyf[kr
:i esa fy;k x;k Fkka BiPAP ds fy, ifjokn }kjk lgefr ls badkj
vLohd`fr dh cfr bls lkFk layXu gS vkSj vuqcaek&R4 gSA
15- fnukad 02@06@2018 dh lqcg ejht dk ja v,DLhtu Lrj fxjus
yxk] japki de gks x;k] ukM+h rst gks xA vkSj ew= vkmViQV Hkh de gks
x;k Fkk] ejht dks xgu mipkj vkSj fuxjkuh ds fy, fQj ls vkAlh;w
1/2 ICU 1/2 esa LFkkukarfjr dj fn;k x;k vkAlh;w esa ;ksX; M,DVjksa vkSj
lykgdkjksa us ejht dh mfpr vkSj lgh ns[kHkky dh vkSj ejht ds egRoiv.kZ
ekinaMksa 1/4 vital parameters 1/2 vkSj fLFkfr dks fu;af=r djus vkSj lqekkjus ds
fy, mipkj vkSj nok,a 'kq: dh xbA an; ds 2&Mh bdk 1/4 2&D Echo 1/2 dh
lykg nh xAA fdlh Hkh laHkkfor la0e.k dh ns[kHkky ds fy, ,aVhck;ksfVdL
dks Hkh vixzsM fd;k x;k vkA pwfa d 'olu foQyrk 1/4 respiratory failure 1/2 vkSj
xqnZs dh f'kfFkyrk 1/4 kidney dysfunction 1/2 dh laHkkouk Fkh] blfy, ejht dks
esfMdy vkAlh;w esa LFkkukarfjr dj fn;k x;k rkfd vko';drk iM+us ij
eSdsfudy osafVys'ku vkSj Mk;fyfll fd;k tk ldsA japki cuk, j[kus ds
fy, vk;uksVaksIl 1/4 ionotropes 1/2 'kq: fd, x, vkSj lykg ds vuqlkj 2&Mh
bdk fd;k x;k] ftlds ifj.kke v,ijs'ku ls igys ds ifj.kkeksa ds leku gh
Fksa bl chp ejht ds ja esa ,l- f0,fVfu 1/4 S- Creatinine 1/2 c<+us yxk]
ftlls xqnsZ dh f'kfFkyrk dh 'kq#vkr dk ladsr feykA
16- pwfa d foLr`r fo'ys"k.k ij eYVh v,xZu fMLQaD'ku 1/4 vaxksa dh foQyrk 1/2
dk dksA Li"V dkj.k ugE feyk] blfy, bu leL;kvksa ds dkj.k dkAM;d
fMLQaD'ku dh laHkkouk ij Hkh fopkj fd;k x;k vkSj rnuqlkj dkAM;d
,atbeksa dk ijh{k.k fd;k x;k vkSj mipkj 'kq: fd;k x;k vkA ekhjs&ekhjs

10

jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVy de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

f0,fVfu c<+rk jgk vkSj 2-0 feyhxzke rd igqip x;k] tks xqnsZ dh f'kfFkyrk
ds yxkrkj fcxM+us dk ladsr nsrk gSA ejht dk gheksXyksfcu fLFkj Fkk vkSj
dqy Y;wdkslkbV dkmaV 1/4 total leukocyte count 1/2 Hkh lkekU; Fkka Qq1Qqlh;
f'kfFkyrk 1/4 pulmonary dysfunction 1/2 ds fdlh Hkh dkj.k dks [kkfjt djus
ds fy, ofj"B lykgdkj M,- ,e- ,y- xqIrK ls Hkh ijke'kZ fd;k x;k vkA
iYeksujh FkzksEcksEcksfyT+e 1/4 pulmonary thromboembolism 1/2 vkSj buosflo
eSdsfudy osfa Vys'ku dks [kkfjt djus ds fy, nksuksa iSjksa ds M,iy 1/4 doppler 1/2

dh lykg nh xAA fdlh Hkh laHkkfor thok.kq la0e.k dh ns[kHkky ds fy,
 ,d vkSj ,avhck;ksfVd tksM+k x;kA M,iy VsLV ds ifj.kke FkzksEcksEcksfyT+e ds
 fy, udkjkRed Fks vkSj dqN fgLLksa esa dksA      kg ;k de   kg ug   fn[kk
 vkSj vU; fgLLksa esa Lor% LQwrZ   kg ysfdu de xfr fn[kkA nh vkSj f'kjkvksa
 dh {kerk   potency of veins   dk lq>ko fn;kA ifjoknh dks lwfpr djus
 vkSj mudh lgefpr ysus ds ckn osafVysVj ij ys fy;k x;kA

17- bl   dkj] foi{khx.k vkSj muds ;ksX; vkSj vuqHkoh deZpkfj;ksa ds
 loksZ  ke   ;klksa vkSj loksZ  ke laHko mipkj vkSj ns[kHkky   nku djus ds   kotwn
 fnukad 02@06@2018 ls 04@06@2018 rd dh vof  k ds nksjku ejht dh
 fLFkfr yxkrkj [kjc gksrh xAA ejht dks eSdsfudy osafVys'ku ij j[kk x;k
 vkSj ejht dh fcxM+rh fLFkfr dks fu;af=r djus vkSj   caf  kr djus ds fy,
 Mk;fyfll fd;k x;k D;ksfa d nksuksa yhd ijh{k.k   igyk l  tdy   f  ;k ds
 rqjar ckn vkSj nwljk v,ijs'ku ds nks fnu ckn   udkjkRed vk, vkSj lkfcr
 fd;k fd isV ls isV dh xqgk esa dksA fjlko ug   Fkka

18- fnukad 03@06@2018 dks Nkrh vkSj isV dh ;w,lth   USG   L  h  ux
 fQj ls dh xA vkSj fjiksVZ esa Li"V :i ls dgk x;k fd tkaps x, Bksl vax
 lkekU; fn[kkA ns jgs Fks vkSj egRoiw.kZ tyksnj   Ascitis- isV esa rjy inkFkZ
 dk fuekZ.k   ;k teko dk dksA lcwr ug   Fkka ejht dh fcxM+rh fLFkfr]
 tfVyrkvksa dh xaHkhjrk vkSj iwokZuqeku   prognosis   dks gj Lrj ij SDMH

11

jkT; miHkksDrk vk;ksx] t;iqj
 ifjokn la[;k 160@2019
 Jherh rqylh f'koukuh ,oa vU;
 cuke
 larksdck nqyZHkth eseksfj;y
 gkWfLiVy de esfMdy fjlpZ
 baLVhV~;wV ,oa vU;

ds lacfa   kr deZpkfj;ksa vkSj foi{khx.k }kjk ifjoknh dks fof  kor vkSj mfpr
 :i ls le>k;k x;k Fkka

19- tc ejht dh fcxM+rh fLFkfr loksZ  ke laHko mipkj vkSj nokvksa ij
   frf  ;k ug   ns jgh Fkh vkSj fofHkUu ekinamksa ds vk  kkj ij lsfiLL   sepsis  
 dk lexx uSnkfud funku fd;k x;k Fkk] rc foi{kh la[;k 2 us fnukad
 05@06@2018 dh lqcg 0;f  xr :i ls ifjoknh ls laidZ fd;k vkSj mUgsa
 lwfpr fd;k fd ejht ij LHkh laHko xSj&vk  ked   non-invasive   ijh{k.k
 vkSj tkap dh xA gS] ysfdu fjiksVZ ejht dh fcxM+rh fLFkfr ds fdlh fof'k"V
 dkj.k ;k otg dk [kqyklk djus esa foQy jgh gS] vkSj bl xaHkhj fLFkfr esa
 ,dek= fodYi Vkads [kksyuk vkSj ejht ij *jh&yS  ksLdksih*
   re-laparoscopy   djuk gS vkSj isV ds vanj okLro esa fdlh fo'ks"k dkj.k
 ;k leL;k dh ryk'k djuk gS] ftlls ejht esa tfVyrk,a iSnk gks ldrh
 gSaA yS  ksLdksih dh   f  ;k djus ds vykok dksA vU; fodYi ug   cpk Fkka
 fLFkfr dh xaHkhjrk dks iwjh rjg le>rs gq, vkSj foi{kh la[;k 2 }kjk fn,
 x, Li"Vhdj.k ls vk'oLr gksdj] f'kd;rdkZ la[;k 1 us fnukad
 05@06@2018 dks lqcg 11-30 cts jh&yS  ksLdksih ds fy, lgefpr 0;   dh
 vkSj bls fy, fyf[kr :i esa viuh lgefpr nhA

20- ifjoknh us fuosnu fd;k gS fd 0;f  xr :i ls ifjfpr ,l,e,l
 (SMS) vLirky ds M,- thou dkadfj;k dks vius csVs dh fLFkfr dk fo'ys"k.k
 djus ds fy, cqykus dh vuqefr nh tk,] ftl ij foi{khx.k lger gks x,
 D;ksfa d foi{khx.k ds ikl fNikus ds fy, dqN Hkh ug   Fkka ejht dh tkap
 djus ds ckn M,- thou dkadfj;k us Hkh ogh jk; nh fd ,dek= jkLrk ejht
 ds Vkads fQj ls [kksyuk vkSj ejht ds isV ds vanj okLrfod fLFkfr dks

ns[kuk gSA

21- fnukad 06@06@2018 dh jkr yxHkx 11%30 cts ejht dks vpkud
czSMhdKÆM;k ¼ân; xfr de gksuk½ gqvK] ftlls dkÆM;d vjsLV gqvKA rqjar
dkÆM;ksiYeksujh fjlflVs'ku ¼CPR½ 'kq: fd;k x;k vkSj vxys 45 feuV
12

jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVY de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

rd tkjh j[kk x;k] ysfdu reke ç;klksa ds cktwn ejht dks iqtÊfor
ugÈ fd;k tk ldk vkSj fnukad 07@06@2018 dks jkr 12%15 cts mls e`r
?kksf"kr dj fn;k x;KA ejht ds iqu% vUos"k.k@jH&ySçksLdksih ds fodYi ls
badkj fd;k Fkk A dqN fLFkfr;ksa vkSj dqN 0;fäxr jksfx;ksa esa loksZÜke dks'ky]
ns[kHKky] ifjJe vkSj lkoèkkuh cjrus ds cktwn ges'kk okafNr ifj.kke çkIr
u djus esa fpfdRlk foKku dh detksjh vkSj lhek dks nqfu;k Hkj esa Lohdkj
fd;k x;k gSA csfj,fVªd ltZjh ds ckn ejht }kjk fodflr tfVyrk,a vkSj
leL;k,a foi{kHx.k ;k fdLh Hkh 0;fä] ftlds fy, foi{kHx.k ftEesnkj gSa]
mudh vksj ls fdLh ykijokgh ;k ns[kHKky dh deh ds dkj.k ugÈ FkÈ] cfYd
v,ijs'ku ds igys ls mudh xaHkhj :i ls le>kSrK dh xÃ 'kkjhfd fLFkfr]
ejht ls tqM+s mPp tksf[keksa ds dkj.k FkÈ vkSj bu LHkh tksf[keksa dks
ifjoknhx.k dks igys ls vPNh rjg ls le>k;k vkSj lwfpr fd;k x;k Fkk
vkSj muds }kjk v,ijs'ku ds fy, lgefrr nsus ds ckn gh ejht ij csfj,fVªd
ltZjh dh xÃ FkhA

22- ifjokn dks gj le; ejht }kjk fodflr dh tk jgh ltZjh ds ckn
dh LHkh tfVyrkvks]a muds mipkj vkSj iwokZuqeku ds ckjs esa vPNh rjg ls
lwfpr fd;k x;k Fkk vkSj ogh bls lFk layXu fçfLØI'ku esa Hkh ntZ gSA
foi{kHx.k ejht dh ns[kHKky vkSj mipkj çnku djus esa u rks ykijokgh Fks
vkSj u gh vlkoèkku Fks A foi{kHx.k ejht dh e`R;q ds fy, ftEesnkj ugÈ
gSaA ejht dh e`R;q mPp tksf[ke okyh ltZjh ds ckn fodflr xaHkhj csdkcw
tfVyrkvksa dk ifj.kke FkhA

23- 2]25]000@&#i;s dh jkf'k dsoy csfjfVªd ltZjh ds iSdst ds fy,
Fkh] ejht csfjfVªd ltZjh ds iSdst ykxr esa 'kkfey lkr fnuksa ds vykok
vfrfjä lkr fnuksa rd vLirky esa jgKA csfjfVªd ltZjh ds ckn ejht }kjk
fodflr xaHkhj tfVyrkvksa ds dkj.k tkap] ijh{k.k vkSj M,DVjksa ds nkSjs ls
tqM+h vfrfjä ykxr vkSj 'kqYd FksA ejht dk loZ&lekos'kh vafre fcy
5]12]025@& #i;s dh jkf'k ds fy, Fkka foi{kH la[;k 1 us lgkuqHkwfr] d#.kk
vkSj ifjoknhx.k dh xaHkhj fLFkfr ds dkj.k] fQj Hkh vafre fcy esa

13

jkT; miHkksDrk vk;ksx] t;iqj
ifjokn la[;k 160@2019
Jherh rqylh f'koukuh ,oa vU;
cuke
larksdck nqyZHkth eseksfj;y
gkWfLiVY de esfMdy fjlpZ
baLVhV~;wV ,oa vU;

1]62]025@& #i;s dh NwV nh vkSj f'kdk;rdrkZ la[;k 1 ls dsoy
 3]50]000@& #i;s dh dqy jkf'k yh ,oa ifjoknhx.k ds csVs ds 'ko dks lkSaius
 dh vuqefr nhA fnukad 07@06@2018 ds vafre fcy dh çfr bls lkFk
 layXu gS vkSj vuqcaèk&R10 ds :i esa fpdfRlk is'ksojksa dh
 ykijokgh dk eryl ;k çek.k ugÈ gSA
 24- jksxh dks ges'kk foi{kh la[;k 2 vkSj SDMH ds vU; M,DVjksa ds
 Åekunkj ewY;kadu vkSj jk; ds vuqlkj loksZÜke mipkj vkSj nok nh xÃ vkSj
 jksxh ds lkFk dksÃ ç;ksx ugÈ fd;k x;kA lQy csfjfv^{ad} ltZjh ds ckn
 mRiUu gksus okyh csdkcw tfVyrkvksa vkSj leL;kvksa ds dkj.k jksxh dh e`R;q
 gqÃA ;s tfVyrk,a vkSj leL;k,a iwjh rjg ls vçR;kf'kr ugÈ FkÈ vkSj bu
 tfVyrkvksa dh laHkkouk dks ifjoknh dks igys ls gh vPNh rjg ls le>k;k
 x;k Fkka foi{khx.k us jksxh ds ekeys esa viuh loksZÜke {kerk ds vuqlkj
 loksZÜke ifj.kke çkIr djus dh dksf'k'k dh xÃ Fkha foi{khx.k dh vksj ls
 lsokvksa esa dksÃ ykijokgh] vlkoèkkuh ;k deh ugÈ gqÃ gSA foi{khx.k miHkksäk
 laj{k.k vfèkfu;e dh èkkjk 2¼1¼¼0½ vkSj 14 ds rgr fcYdqy Hkh mùkjk;h
 ugÈ gSA f'kdk;rdrkZ mä vfèkfu;e ds rgr fdLH Hkh jkgr ;k eqvkots ds
 vfèkdjh ugÈ gSA
 25- mHk;i{kdkju~ us vius ifjokn ,oa tokc ifjokn ds leFkZu esa
 'kiFk&i= ,oa fofHkUu nLrkost is'k fd;s gSA ftudk vko';drk vuqlkj
 foospu fd;k tk,xkA
 26- mHk;i{k ds fo}ku vf/koDrkx.k dh cgl lquh x;h ,oa i=koyh dk
 voyksdu fd;k x;k rFkk mHk;i{kdkju~ }kjk izLqr U;kf;d n` "Vkarksa dk
 llEeku v/;;u izkIr fd;k x;k ,oa ekZn'kZu izkIr fd;k x;kA
 27- ifjoknhx.k ds fo}ku vf/koDrk dk rdZ gS fd foi{khx.k us muds iq=
 ds bykt ls iwoZ ;g 'krZ j[kh Fkh fd pSdvi vkSj fV^aVesaV nsxs]a mlds i'pkr~
 gh ukWeZ gksus ij mldk vkWijs'ku djsxsa vkSj blh 'krZ ij fnukad
 24-05-2018 dks muds iq= dks HkrhZ dj;k x;k] ftlesa 2]25]000@&;i;s

14

jkT; miHkksDrk vk;ksx] t;iqj
 ifjokn la[;k 160@2019
 Jherh rqylh f'koukuh ,oa vU;
 cuke
 larksdck nqyZHkth eseksfj;y
 gkWfLiVy de esfMdy fjlpZ
 baLVhV~;wV ,oa vU;

foi{khx.k gkWfLiVy dks vnk fd;k x;k] tks fjiksVZ vk;h fnukad 30-05-2018
 dks muds iq= dk vkWijs'ku fd;k x;k] tks fd fnukad 02-06-2018 rd ukWeZy
 jgk] bl izdkj fnukad 02-06-2018 dh jk=h ds i'pkr~ muds iq= dh rch;r
 fcxM+us yxh] ftldks igys okMZ esa f'kV dj fn;k x;k Fkk] mls vkbZ-lh-;w-
 esa f'kV djuk iM+kA MkW- jkts'k Hkkstokuh dks jkf= ds 12 cts lEidZ fd;k
 fd;k ijarq VsyhQksu ij mlls lEidZ ugha gqvkA foi{kh la[;k 1 gkWfLiVy
 dks lpuk nh x;hA foi{kh la[;k 2 MkWDVj ejht dh gkyr fcxM+us ij Hkh
 ugha vk;k vkSj fnukad 03-06-2018 dks ejht dks osavhysVj ij j[kk x;k]
 ftlds vanj baQDs 'ku gks tkuk crk;k] ch-ih- ykW gks x;h] mls Mk;ysfl ij
 j[kk x;k vkSj ;g crk;k x;k fd isV esa fyfDoM bDV~Bk gks x;k gS] iqu%
 vkWijs'ku djuk iM+sxk] mlh ls ekywe gks ik,xkA ejht ds cpus ds ek= 1
 izfr'kr gh pka l gksus crk;s] bl ij ifjoknhx.k ejht dk iqu% vkWijs'ku
 djkus dks lger ugha gq,A mUgksaus MkW- thou dkadfj;k ,l-,e-,l gkWfLiVy
 ls lEidZ fd;k] ftlds }kjk nks vkads [kksydj gh gkyr dh tkudjh fy;s

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29 (i) Judgement of Supreme Court of India in Civil Appeal no. 2641 of 2010 titled as V. Kishan Rao Vs. Nikhil Super Speciality Hospital decided on 8.3.2010 [III (2010) CPJ 1 (SC)]
Evidence Act, 1872 - Sections 61, 64, 74, 75 -- Medical Negligence
- Wrong treatment - Negligence on part of respondent-opposite party

No. 1 in giving wrong treatment to complainant- appellant's wife, suffering from Malaria - District Forum rightly held that patient died due to 'cardio respiratory arrest and Malaria as case records show wrong treatment for Typhoid was given to complainant's wife - That there is clear admission on part of respondent No. 1 that patient was not treated for Malaria - District Forum rightly did not ask appellant to adduce expert evidence as complaints before Consumer Forum are tried summarily and Evidence Act does not apply - Both State Commission and National Commission fell into error by opining to the contrary - Expert opinion is required only in complicated cases as held in Dr. J.J. Merchant III (2002) CPJ 8 (SC) and where in its discretion, Consumer Fora feels it is required - Direction in D'Souza case I(2009) CPJ 32 (SC), for referring all cases of medical negligence to competent doctor specialised in field is contrary to principles laid down by Larger Bench of this Court on this point -- Those directions are also contrary to avowed purposes of Act -- If parties want to adduce expert evidence before Consumer Fora, members of Fora by applying their mind to facts and circumstances of case and materials jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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on record can allow parties to adduce such evidence - This Court is constrained to set aside orders passed by State Commission and National Commission and restore order passed by District Fora - Respondent No. 1 is directed to pay appellant amount granted in his favour by District Fora i.e. sum of Rs. 2 lacs as compensation and Rs. 10,000/- Costs.

29 (ii) Judgement of Supreme Court of India in Civil Appeal no. 6619 of 2016 decided on 16.12.2019 titled as Maharaja Agrasen Hospital & ors. Vs. Master Rishabh Sharma & ors. [I (2020) SLT 9] Medical Negligence - Duty of Care - Injury must be sufficiently proximate to medical practitioner's breach of duty - Standard to be applied for adjudging whether medical professional charged has been negligent or not, in performance of his duty, would be that of an ordinary competent person exercising ordinary skill in the profession

- Law requires neither very highest nor a very low degree of care and competence to adjudge whether medical professional has been negligent in treatment of patient.

29 (iii) Judgement of Punjab State Consumer Disputes Redressal Commission, Chandigarh in Consumer Complaint No. 832 of 2017 titled as Santosh Kumari Vs. Fortis Escorts Hospital & ors. [I (2019)CPJ 18 (Punj.)] Consumer Protection Act, 1986 - Sections 2(1)(g), 14(1)(d), 17(1)(a)(i) - Medical Negligence - Bariatric surgery --Wrong procedure taken - Death of patient - Deficiency in service - On account of non-handling of umbilical hernia of patient prior to her bariatric surgery, problem of obstruction caused disrapture of anastomotic site, causing leakage of blood in abdomen, causing severe damage to jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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organs of 'SK' patient since deceased - Due to non-repair of her umbilical hernia either at time of bariatric surgery or prior thereto by OP Nos. 1 and 2, this obstruction cropped up which ultimately gave rise to all problems leading to death of patient due to her multiple organ failure - OPs were already aware of this fact that complainant was already suffering from so many health problems and they have not warned attendants of complainants for not admitting her till she was found fit - OPs went ahead in admitting her in hospital and in performing bariatric surgery and other procedure probably under pulse of greed only - Negligence proved - Compensation awarded.

Result : Complaint allowed.

29 (iv) Judgement of Supreme Court of India in Civil Appeal nos. 227-228 of 2019 decided on 9.1.2019 titled as Arun Kumar Manglik Vs. Chirayu Health and Medicare Pvt. Ltd. & anr. Consumer Protection Act, 1986 -- Sections 2(1)(g), 14(1)(d), 23 - Medical Negligence - Dengue fever - Cardiac arrest - Death of patient

- Reasonable care not taken - Deficiency in service - Critical parameters of patient were not evaluated - Simple expedient of monitoring blood parameters was not undergone - This was in contravention of WHO guidelines as well as guidelines prescribed by Directorate of National Vector Borne Diseases Control Programme - In failing to provide medical treatment in accordance with medical guidelines, respondents failed to satisfy standard of reasonable care -- To say that patient or her family would have resisted a blood test, as is urged by respondents, is merely a conjecture - Since no test was done, such an explanation cannot be accepted - Judgment of NCDRC is unsustainable - No basis or justification to reverse finding of jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k; k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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medical negligence which was arrived at by the SCDRC - While finding of medical negligence against hospital would stand confirmed, Director of Hospital not personally liable.

(iii) Consumer Protection Act, 1986 - Sections 14(1)(d), 23 - Compensation - Medical Negligence - Death of patient - Complainant has lost his spouse who was 56 years of age - Contribution made by a non-working spouse to the welfare of family has an economic equivalent Compensation amount enhanced from Rs. 6 lakhs to Rs. 15 lakhs -- Interest @ 9% p.a. awarded.

29 (v) Judgement of NCDRC, New Delhi in First Appeal no. 101 of 2016 titled as Pankaj R. Toprani & ors. Vs. Bombay Hospital and Research & Medical & ors. decided on 4.7.2019 [IV (2019) CPJ 546 (NC)] Consumer Protection Act, 1986 - Sections 2(1)(g), 14(1)(d), 21(a)(ii)

- Medical Negligence - Surgery for carcinoma of sigmoid colon - Patient having convulsions - Bradycardia attack - Brain injury - Vegetative state of patient - Mental agony and financial loss - Deficiency in service - State Commission dismissed complaint - Hence appeal -- Onus is on hospital and treating doctors to explain the reasons for occurrence of bradycardia - No reason given for the onset of bradycardia which has occurred post operatively, when the patient was in ICU - While shifting patient who was admittedly not in a stable condition from 3rd to 12th floor ICU due care and caution ought to have been taken with respect to ventilation of patient and in a timely manner - Patient had slipped into a coma and remained in a vegetative state for a period of almost three years - Medical record filed by hospital does not depict whether the anti-depressants were administered from date of admission till date of surgery - 'Duty of care' jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k; k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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does not end with surgery - Hospital is directed to pay compensation of Rs. 30,00,000 and costs of Rs. 1,00,000 to be paid by both doctors jointly and severally.

29 (vi) Judgement of NCDRC New Delhi in Revision Petition no. 3354 of 2011 titled as Pankaj K. Patel Vs. Ramilaben D. Patel & ors. [IV (2019) CPJ 565 (NC)] Consumer. Protection Act, 1986 - Sections 2(1)(g), 14 (1)(d), 21 (b)

- Medical negligence - Abortion and family planning operation - Surgery conducted - Hole caused in uterus - Bleeding started - Condition deteriorated - Deficiency in service - District Forum partly allowed complaint and awarded compensation of Rs. 1,50,000 - State Commission dismissed appeal - Hence revision - District Forum stated in its order that due to negligence of petitioner, a hole was caused in uterus of respondent No. 1 and she started bleeding - Impugned order upheld - Negligence proved.

29 (vii) Judgement of NCDRC, New Delhi in First Appeal no. 293 & 425 of 2012 titled as Parag Girishchandra Desai Vs. Dr. Ashokbhai C. Shah & anr. decided on 14.05.2019 Consumer Protection Act, 1986 - Sections 2(1)(g), 14(1)(d), 21(a)(ii)

- Medical Negligence - Fever and abdominal pain - Wrong diagnosis

- Infection occurred - Death of patient - Deficiency in service - State Commission partly allowed complaint -- Hence appeal - Patient had Septicaemia and had expired three days subsequent to treatment rendered by treating Doctor - Expert opinion is not mandatory -- It is for treating Doctor to explain as to how sepsis had set in -- Duty of care which ought to have been taken was not taken - Finding of medical negligence has attained finality as treating doctor did not jkT; miHkksDrk vk;ksx] t;ijq ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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prefer any appeal - Doctor was insured under Error and Omission Policy - Appeal preferred by Insurance Company is dismissed with cost of Rs. 10,000.

Consumer Protection Act, 1986 - Sections 14(1)(d), 21(a)(ii) - Compensation - Medical negligence - Patient, who expired, was only 28 years old and was contributing to family income - Even prospect of her salary being increased was not considered - She was also a home maker spouse whose contribution is significant and capable of being measured in monetary terms -- State Commission has not taken into consideration loss of love and affection and multifarious activities performed by a home maker, apart from fact that she was also contributing to family income as she was a school teacher under training - Compensation enhanced from Rs. 3,00,000 to Rs. 8,00,000

- Interest @ 9% p.a. awarded.

29 (viii) Judgment of NCDRC, New Delhi in First Appeal nos. 716 of 2012 titled as Murlidhar R. Chhabria Vs. Breach Candy Hospital Trust & ors. [III (2020) CPJ 312 (NC)] WE have also considered the material that was placed before the commission. WE find a careful consideration that the Commission has not addressed itself to the relevant issues.

29 (ix) Judgement of NCDRC, New Delhi in Revision Petition no. 817 of 2006 titled as D.N. Badoni Vs. Oriental Insurance Co. Ltd. decided on 4.11.2011 Consumer Protection Act, 1986 - Sections 2(1)(g), 14 (1)(d), 21 (a)(ii)

- Medical Negligence - Wrong diagnosis - Improper treatment - Loss of Body parts - Permanent injury and damage - Mental agony and harassment - Deficiency in Service - State Commission dismissed jkT; miHkksDrk vk;ksx] t;ijj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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complaint - Hence appeal - Having ruled out burns due to any external factor by Respondents, Respondents ought to have been more careful in clinching so called underlying problem of TDHS, instead of merely resorting to dressing and repeatedly recording and treating it as mere burns - Never case was treated as TDHS - Record only shows burn injuries in OT during bypass surgery - If it is a case of other than burns, and was TDHS, attempt should have been made to diagnose problem - Histopathological analysis ought to have been done at earliest, rather than doing it as a matter of routine after amputation of finger ends - Seriousness of problem should have been appreciated by respondents and it was their duty to Counsel patient/Complainant of consequences of same - No record to show that he was properly counselled of consequences before amputation was done - Complainant is to be compensated for loss of body parts, trauma, agony and source of livelihood - Respondent is directed to pay compensation of Rs. 7.5 lakh to, complainants - Rs. 20,000 awarded towards litigation cost.

29 (x) Judgement of NCDRC, New Delhi in Revision Petition no. 2654 of 2011 titled as Civil Surgeon-cum-chief Superintendent & anr. Vs. Varsha Chachlani decided on 24.9.2020 [IV (2020) CPJ 134 (NC)] Consumer Protection Act, 1986 - Sections 2(1)(g), 14(1)(d), 21(b) - Medical Negligence - Cardiac emergency - Want of treatment - Death of patient - Deficiency in service - District Forum allowed complaint

- State Commission dismissed appeal - Hence revision - Elderly patient with chest pain, who was brought to hospital is a serious concern and emergency - Duty of care of doctor or hospital is to rule out a cardiac problem at earliest possible and patient cannot be ignored jkT; miHkksDrk vk;ksx] t;ijj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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- Patient who is brought to emergency and who is not treated, results in violation of his Right of Life guaranteed under Article 21 of Constitution of India - A notification was issued by Government, thereby making rules that no patient in emergency shall be denied treatment and shall be shifted to adjacent Hospital after providing primary aid - Doctor and staff nurse acted casually patient's cardiac emergency (chest pain) - Hospital is vicariously liable.

29 (xi) Judgment of NCDRC, New Delhi in Revision Petition no. 169 & 359 of 2017 titled as Dr. Sudhir Mohan Kant Vs. Ramadhar Singh & anr. AND Ramadhar Singh Vs. Dr. Sudhir Mohan Kant & anr., Decided on 16.5.2018 Consumer Protection Act, 1986 - Sections 2(1)(g), 14(1)(d), 21(b) - Medical Negligence - Hypoxia brain injury post anaesthesia - Death of patient - Mental agony and financial loss - Deficiency in service - District Forum allowed complaint - State Commission dismissed appeal - Hence revision - Patient never recovered from surgery and never regained

consciousness - Patient never had any abnormalities either in brain or in abdomen to be considered a high-risk patient - Pitiable state of patient subsequent to surgery is seen from discharge summary, reports, and treatment rendered in various hospitals - Patient was lying in 'comatose state' with bed sores and despite a plethora of blood chemistry investigations and hospitalization, she never regained consciousness - Doctor did not perform his duty which was expected from him under common Medical Parlance - Patient had died during pendency of complaint after having suffered for an inordinate long period of time in a pitiable and pathetic condition - Complainant has also lost love and affection of his wife, who was only 50 years old - She was a mother of three children, who were unmarried jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k; k 160@2019 Jherh rqylh f'koukuh ,oa vU;

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at time of filing of complaint - Amount awarded by District Forum, i.e., compensation of 10,00,000 deserves to be paid to complainant, to meet ends of justice - Cost @ Rs. 50,000 awarded.

29 (xii) Judgment of Supreme Court of India in Civil Appeal no. 5991 of 2002 titled as Ramesh Chandra Agarwal Vs. Regency Hospital Ltd. & ors. decided on 11.9.2009 [IV (2009) CPJ 27 (SC)] Consumer Protection Act, 1986 - Section 23 - Indian Evidence Act, 1872 - Section 45 - Evidence - Expert Opinion - Admissibility of - Expert Evidence advisory in nature - Expert's duty to furnish necessary scientific criteria for testing accuracy of conclusions, to enable judge to form independent judgment - Importance of opinion to be decided on basis of credibility of expert - Relevant facts supporting opinion can be crosschecked - Mere assertion without data/basis is not evidence, even if it comes from expert - Treatment records filed before Commission - Lack of care shown by Assistant Registrar - Records not forwarded to expert - Request to send records for reconsideration rejected by Commission - Commission failed to appreciate that in absence of documents, expert not in position to form true opinion - Fair opportunity to be given to complainant to prove his case - Impugned order set aside - Directions given.

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35- foi{kxh.k ds vuqlkj tks rF; fjdKWMZ ij j[ks x;s] os 'kSysUnz ds vkWijs'ku fd;s tkus rd dh fLFkfr esa fdlh izdkj dk uk rks ifjoknh }kjk uk gh vU; fdlh dfFkr MkWdVj thou dkadkj;k ds }kjk cSfjV^{ad} ltZjh esa fdlh izdkj dh dksbZ ykijokgh@xQyr@pwd@mis{kk jgh gks] ,slk dgha Hkh dFku ugha fd;k x;k gS vFkkZr~ fnukad 30-05-2018 dks tks 'kSysUnz mQZ ckykth dh cSfjV^{ad} ltZjh eksVkik de djus gsrq gqbZ] mlesa fnukad 02-06-2018 rd fLFkfr ukWeZy crk;h x;h gS vFkkZr~ vkWijs'ku lQy gksus dk rF; nf'kZr gqv[k gSA 36- tgka ifjoknhx.k dh ;g eq[; vkifÜk jgh fd fnukad 02-06-2018 dks jkf= 12 cts 'kSysUnz dh reh;r fexM+h vkSj fnukad 06-06-2018 rd og Bhd ugha gqbZ vkSj fnukad 06-06-2018 dks jkf= 12%25 cts mldh e`R;q gks x;h] ftlesa vkWijs'ku ds ckn mfpr lkj&laHkky@lrZdrk foi{kxh.k ds }kjk uk cjrh tkus dk rdZ fy;k x;k gS] bls fy; foi{kxh.k dk dFku gS fd ftl izdkj dk cSfjV^{ad} ltZjh dk izdj.k gS] mlesa ifjoknh firk dks ;g lwfpr fd;k tk pqdk Fkk fd mipkj dh izfØ;k iw.kZ ifj.kke ;k fcYdqy lq/kkj dh xkajVh ugha nsrk gS] uk gh dksbZ vk'oklu fn;k x;k gSA cSfjV^{ad} ltZjh djus ls iwoZ lgfr QkWeZ izn'kZ&vkj&2 'kSysUnz ds firk }kjk fn;k tkuk crk;k] ftlesa lgfr nh x;hA fnukad 24-05-2018 ls fnukad 29-05-2018 rd gkWfLiVy esa ejht dks j[kk x;k ,oa fnukad 30-05-2018 dks cSfjV^{ad} ltZjh djus dk fu.kZ; fy;k x;k vkSj bls iwoZ 'kSysUnz ds firk ls fnukad 29-05-2018 dks ,usfLFkfl;k dh lgfr izn'kZ&vkj&3 yh x;hA 37- vkWijs'ku uksV ds vuqlkj fcuk fdlh tfVyrk ds ltZjh iw.kZ gqbZ A vkWijs'ku fFk,Vj esa ,d yhd VsLV Hkh fd;k x;k] ftlesa isV esa dksbZ fjlko ugha ik;kA fu;fer izfØ;k vkSj izksVksdkWy ds vuqlkj ejht dks vkbZ-lh-;w- esa f'k¶V fd;k x;k] ftlds jDrpki] 'olu nj] vkWDLhtu Lrj o ew= mRiknu fcuk fdlh fo'ks"kk nok ds lkekU; gksus crk;s] ftls ejht dk vkWijs'ku lgh gksus ds ladsr ik;s x;sA lHkh ekin.M lkekU; ik;s x;s] ftl ij fnukad 31-05-2018 dks vkbZ-lh-;w- ls ejht dks dejs esa f'k¶V fd;k x;k D;ksfa d jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

vkWijs'ku Bhd gqv[k Fkka fdlh izdkj dk dksbZ jDr L=ko o laØe.k ugha Fkk rks fu/kkZfjr ekun.M o izksVksdkWy ds vuqlkj ejht dks vkgkj fn;k x;kA izFke ckj fnukad 01-06-2018 dks isV ds Åijh fgLLs esa gYds nnZ dh f'kd;k;r Fkh] ftl ij izksVksdkWy ds vuqlkj ,d yhd VsLV dh lykg nh x;h rkfd LVsiy ykbZu@Lyho ls dksbZ fjlko gks jgk gS vFkok ugha bldk irk py lds ,oa rjy inkFkZ ejht dks fn;s tkus dh

vuqefr blh dkj.k ls nh x;h Fkh D;ksfa d vkWijs'ku esa fdlh izdkj dh dksbZ deh jgh gks] ,sls dksbZ rF; o lk{; ugha ik;s x;s FksA 38- ;|fi foi{khx.k dk ;g Hkh rdZ gS fd fnukad 01-06-2018 dh jkf= dks vkWDLhtu dh deh gksus ij BiPAP ysus ls ejht us euk fd;k vkSj mlds firk us Hkh BiPAP yxkus dh lgefz ls badkj fd;k] tks izn'kZ vkj&4 gksuk crk;k] ftlls fnukad 02-06-2018 dks ejht dk jDr vkWDLhtu Lrj fxjus yxk vkSj ew= output de gks x;k] ftlls ejht dks vkbZ-lh-;w- esa f'k¶V fd;k x;k] tgka ij mfpr ekun.Mksa ds vuqlkj ejht dh ns[kHkky dh x;h] fLFkfr dks fu;af=r djus o lq/kkjus ds mik; fd;s x;s] nokbZ vkjaHk dh x;h] ,aVhck;ksfVd nh x;h rkfd laHkkfor laØe.k dh ns[kHkky dh tk ldsA 39- pwfa d ejht ds lkál dh foQyrk dh laHkkouk Fkh] vr% mls osaVhysVj dh vko';drk gksus vkSj xqnsZ dh fLFkjr ds dkj.k ls Mk;ysfl fd;s tkus dh laHkkouk gksus ij mls vkbZ-lh-;w- esa f'k¶V fd;k x;kA ejht ds nks CyM VsLV fd;s x;s] ftlesa thromboembolism ds ifj.kke udjkRed Fks] ftldh fjiksVZ izn'kZ&vkj&5 gksuh crk;h rFkk ifjoknh ds firk dh lgefz ysdj ejht dks osaVhysVj ij fy;k x;kA fnukad 04-06-2018 rd loksZre lkj&laHkky ds ckotwn Hkh ejht dh gkyr [kjkce gksrh pyh x;h] ftl ij ejht dk Mk;ysfl fd;k x;kA ejht ds nks yhd VsLV fd;s x;sA ,d vkWijs'ku izfØ;k ds rjar ckn vkSj nwljk vkWijs'ku djus ds nks fnu ckn] ftlesa isV esa fdlh izdkj dk dksbZ fjlo ugha ik;k x;kA fdlh izdkj dk rjy inkFkZ dk teko dk lewr Hkh rRle; ugha ik;k x;kA jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy flpZ baLVhV~;wV ,oa vU;

40- ;g Hkh rdZ jgk fd fnukad 05-06-2018 dks ,d ek= fodYi Vkads [kksydj re-laparoscopy djs isV ds vanj okLro esa fdlh fo'ks" k dkj.k@leL;k dh tkap gsrq ejht ds firk dks mldh tksf[ke crksr gq, vuqefr pkg] ftl ij fnukad 05-06-2018 dks lqcg 11%30 cts mlds firk us lgefz O;Dr dj nh ijarq te vkWijs'ku fFk,Vj rS;kj gks x;k vkSj mls vkWijs'ku fFk,Vj esa f'k¶V fd;k tkuk Fkk] rHkh 11%45 cts ejht ds firk us viuh lgefz okil ys yh vkSj re-laparoscopy vkWijs'ku djus ls foi{khx.k dks jksd fn;k x;k] ftldh le>kbZ'k Hkh dh x;hA fnukad 05-06-2018 dks nh x;h lgefz o ckn esa lgefz jn~n fd;s tkus dk izn'kZ&vkj&10 nLrkost gksuk crk;kA prescription fnukad 06-06-2018 izn'kZ&vkj&8 dh vksj Hkh /;ku vkdf" kZr fd;kA fnukad 06-06-2018 dks jkf= 11%30 cts ejht dks vpkud cardiac arrest gqv] ftls lh-ih-vkj- fn;k x;kA 45 feuV rd iz;kl fd;s x;s vkSj varr% mlh jkf= dks 12%15 cts ejht dh e`R;q gks x;hA 41-mYys[kuh; gS fd cSfjV^ad ltZjh ds ckjs esa tks tfVyrk,a o leL;k,a mRiUu gksrh gS] mlds ckjs esa ejht ds firk dks le>k fn;k tkuk] ,ufLFkfl;k ls iwoZ rFkk vkWijs'ku ls iwoZ lgefz fy;k tkuk vkSj te ejht dh re-laparoscopy djus dh vko';drk mlds thou dks cpkus ds fy, foi{khx.k dks vko';d eglwl gqbZ re ml fLFkfr esa izFker% ejht ds firk }kjk blh lgefz nsuk vkSj rRi'pkr~ re-laparoscopy dh lgefz okil ysus ds dkj.k ls ejht dk re-laparoscopy u fd;s tkus ls isV ds vanj dh okLrfod leL;k dh tkap ugha gks ik;h vkSj blh nkSjku ejht dks cardiac arrest gqv gSA 42- bl izdkj ejht dh tks cSfjV^ad ltZjh gqbZ] og ,d tfVy ltZjh Fkh izFker% vkWijs'ku lQy gksus ds ladsr mDr vuqlkj ik;s x;s gSAA f}rh;r% MkWDVj ds }kjk vkWijs'ku ds ckn vFkkZr~ fnukad 30-05-2018 ls ysdj fnukad 06-06-2018 rd ejht dh ns[kHkky uk dh gks\ ,sls rF; Hkh i=koyh ij ugha gSA fdlh Hkh O;fDr ds lQy cSfjV^ad ltZjh ds i'pkr~ tks tfVyrk,a mRiUu jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy flpZ baLVhV~;wV ,oa vU;

gksrh gS] mu tfVyrkvksa ds ifj.kkeLo:i ;fn ifj.kke okafNr ugha jgrs gSa rks bls ;g ugha ekuk tk ldrk fd foi{khx.k MkWDVj o gkWfLiVy dh fdlh izdkj dh vkWijs'ku] bykt o ns[kHkky esa ykijokgh jgh gksA 43- bl laca/k esa foi{khx.k dh vksj ls fuEu fof/k fofu'p; izLrqr fd;s x;s gS%& 43(i) Judgement of

Supreme Court of India in Civil Appeal no. 6507 of 2009 titled as Dr. (Mrs.) Chanda Rani Akhouri & ors. Vs. Dr. M.A. Methusethupathi & ors.

In our opinion, the Commission has not committed any manifest error in arriving to a conclusion that in post operative medical negligence or follow up care, there was no negligence being committed by the respondents which may be a foundation for entertaining the complaint filed by the appellants. In consequence thereof, the judgment of the Commission does not call for any interference by this Court.

43(ii) Judgement of NCDRC, New Delhi decided on 18.03.2020 titled as Mrs. Anuja Chaudhary Vs. Shivam Hospital & Research It is pertinent to note that, that regular antenatal care, identification of high risk factors, close monitoring of labour, active management of the third stage of labour, and to avoid difficult vaginal delivery the timely decision to do caesarean can reduce the incidence of EOH. In the instant case, on the basis of medical record, it is evident that the patient was under care of O.P. No.3 during antenatal period and as per standard protocol patient was monitored. In our view the O.P. No. 3 Dr. Sarika Roy adopted conservative measures till the patient was hemodynamically stable. Patient was transfused about 10 units of blood, but the intractable obstetrical haemorrhage of the patient was unresponsive to all measures and, thus, to save the life of patient from jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlpZ baLVhV~;wV ,oa vU;

obstetric shock, OP No.3 performed an emergency subtotal hysterectomy.

Based on the foregoing discussion, in the obtaining facts and circumstances, we do not find it feasible to attribute negligence / deficiency on the opposite parties. The Complainants have failed to establish deficiency / negligence against the treating doctors..

43(iii) Judgement of NCDRC, New Delhi in Consumer Case no. 185 of 2011 decided on 17.6.2020 titled as Dr. Saud Abbasi Vs. Gargi Hospital & ors. [2020] 2 CPR(NC) 533 Consumer Protection Act, 1986 - Sections 2(1)(c), 2(1)(g) and 21:

[Consumer Protection Act, 2019 - Sections 2(6), 2(11) and 58] - Medical Negligence - Fetal hypoxia - Cerebral Palsy (C.P.) - Complaint - Scope - Complainant's wife during her pregnancy was under treatment of respondent no. 3-doctor - LSCS performed after long waiting for five hours after admission of patient - Allegedly, due to negligence of the respondent no. 2 the caesarian operation was delayed and baby with severe brain damage was born - Cerebral palsy i.e., Quadruplegia, with moderate mental retardation diagnosed - Risk of Cerebral palsy includes damage due to prenatal infection - In view of materials on record, neither failure of duty of care nor deficiency in service found on part of hospital or treating doctors - Baby did not encounter hypoxia during labour - Unfortunately, baby suffered C.P.

- Complainant failed to prove the intrapartum hypoxia was the cause of C.P. - Expert opinions ruled out hypoxia etiology of C.P. - Medical Negligence on part of hospital and respondent nos. 2 and 3 ruled out - However, costs of Rs. 1 lakh imposed upon respondeht no. 4 for false affidavit - Direction issued [Paras 14 to 31]Result: Complaint Dismissed CONSUMER PROTECTION ACT : S.2(1)(c), S.2(1)(g), jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

S.2(11), S.2(6), S.21, S.58 IMPORTANT POINT Person claiming medical negligence must establish that negligence has occurred by hospital/treating doctor.

43(iv) Judgement of Supreme Court of India in Civil Appeal no. 3971 of 2011 decided on 01.10.2018 titled as S.K. Jhunjhunwala Vs. Dhanwanti Kaur & anr. [(2019) 2Supreme Court Cases 282] Consumer Protection - Services - Medical practitioners/services -- Medical negligence -- Test to determine -- Test laid down in Rolam, (1957) 1 WLR 582 and subsequently reiterated in Eckersley, (1988) 18 Con LR 1 (CA) -- Held, is consistently followed by all the courts all over the world including Indian courts -- Principles of law on above issue as stated by Supreme Court in Jacob Mathew, (2005) 6 SCC 1 after extensively referring to Bolam case and Eckersley case, reiterated 43(v) Judgement of NCDRC New Delhi in First Appeal no. 53 & 115 of 2010 titled as Shyam Sunder Dash Vs. Tata Memorial Hospital [2021] 1 CPR (NC) 562 Consumer Protection Act, 1986--Sections 19 and 2(1)(g) :

[Consumer Protection Act, 2019--Sections 41 and 2(11)--Medical Negligence-Osteosarcoma-Delay in performing operation leading to death-Daughter of complainant diagnosed for Osteosarcoma (bone sancer)-Patient was admitted to TMH in February, 1999 but the surgery was conducted after 6 months delay in September, 1999- Complainant neither led any expert evidence nor produced any medical literature to prove medical negligence As per expert opinions nothing is established about any lapses or failure of duty of care at TMH and does not corroborate the allegations of negligence raised by the complainant no. 2-- Thus the State Commission rightly held that jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

there was no medical negligence from opposite parties-Doctors at TMH have made correct diagnosis of Osteosarcoma-No deviation from the duty of care as operating surgeon to decide the time of operation after appropriate chemo therapy cycles and use of proper implant during surgery-Treatment plea found correct as per standard of practice Patient died after eight months of the surgery and it was not due to any infection or any deficiency in duty of care of the treating doctor-Patient died due to metastasis in the lungs-Negligence on treating doctors at TMH ruled out. (Paras 14 to

26)Result: Order Accordingly.CONSUMER PROTECTION ACT :

S.19, S.2(1)(g), S.2(11), S.41 IMPORTANT POINT Negligence in treatment of Osteosarcoma, ruled out, since treatment plan was correct as per standard of practice.

43(vi) Judgement of Supreme Court of India in Civil Appeal no. 2024 of 2019 titled as Vinod Jain Vs. Antokba Durlabhji Memorial hospital decided on 25.02.2019 [2019] o ACJ 1614 The demise of the wife of the appellant has resulted in the legal proceedings being initiated by the appellant on a belief that the cause of her death was medical negligence. The State Consumer Disputes Redressal Commission, Rajasthan found in favour of the appellant, but the said order was upset in appeal in the National Consumer Disputes Redressal Commission, New Delhi. Finding of the Court:

The approach adopted by the NCDRC cannot be said to be faulty»* Result: Appeal dismissed.RAJASTHAN MEDICAL ACT : • IMPORTANT POINT Sympathy cannot translate into a legal remedy.

jkT; miHkksDrk vk;ksx] t;ij ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

mijksDr fof/k fofu'p; gLrxr izdj.k esa iw.kZr% pLlk gksus ik;s x;s gSa D;ksfa d i=koyh esa fpfdRldh; ykijokgh dks lkfer djus gsrq ifjoknh dh vksj ls dksbZ lk{; is'k ugha dh x;h gSa ifjoknh dk earO; ek= ^^ifjLFkfr;ka Lo;a eksyrh gS** ds fl)kar ij vk/kkfjr gksuk crk;k ijarq dsoy ^^ifjLFkfr;ka Lo;a eksyrh gS** fl)kar ds vk/kkj ij gh fdllh Hkh MkWDVj dks fpfdRldh; ykijokgh ds fy, mUkjk;k ugha Bgjk;k tk ldrk gSa 44-foi{kx.k gkWfLiVy o MkWDVj ds }kjk ftuds lqijfotu esa leLr fpfdRldh; vkWijs'ku o dk;Z fd;s x;s] mudh lsok esa fdl izdkj vkSj D;k deh jgh \ bl lac/a k esa Hkh dksbZ lk{; ifjoknh us izLrrr ugha fd;s gSaA fnukad 30-05-2018 dks vkWijs'ku gksus ds i'pkr~ ftl rrjg dh mls MkBV fn;k tkuk vkjEHk fd;k x;k] mlls Hkh vkWijs'ku lQy gksuk Li"V :i ls ik;k x;k gSa bl izdkj nkSjkus vkWijs'ku fdllh izdkj dh Hkh dksbZ ykijokgh lkfer ugha gqbZ gSa 45- tgka rd vkWijs'ku ds i'pkr~ fnukad 30-05-2018 ls fnukad 02-06-2018 rd ejht ukWeZy jgk mlds i'pkr~ mls tks fnDdr vkuh vkjEHk gqbZ ek= mlh ds vk/kkj ij mipkj esa deh gksuk ugha ekuk tk ldrk gSa ;g rF; ifjoknh dks lkfer djuk Fkk fd vkWijs'ku ds ckn fdl izdkj ls gkWfLiVy ds }kjk vFkok MkWDVj ds }kjk ns[kHkky ugha dh x;h] tks ns[kHkky ml izd`fr ds ejht dh tkuh Fkha 46- ejht dh vpkud reh;r [kjkc gksus ij mls okMZ ls lh/ks vkbZ-lh- ;w- esa ys tk;k tkuk] osaVhysVj ij j[kk tkuk] Mk;ysfl fd;k tkuk vkfn ds rF; ;gh nf'kZr djrs gSa fd foi{kx.k gkWfLiVy o MkWDVj ds }kjk ejht dks vkWijs'ku ds i'pkr~ Hkh vuvVs.M ugha NksMk+ x;k gSa tgka rd ejht dk re-laparoscopy tkap fd;s tkus dk iz'u Fkk] ftldh ejht ds firk us igys vuqefr nh vkSj ckn esa tc mls vkHkkl gqvkd fd blesa ek= 1 izfr'kr gh lQyrk ds pkal gS rks vuqefr okil ys yh x;h Fkh] ftlds dkj.k ls og vko';d VsLV ugha gks ldkA jkT; miHkksDrk vk;ksx] t;ij

ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy flpZ baLVhV~;wV ,oa vU;

47- bl izdkj ^fpdRldh; ykijokgh* ds izdj.k esa lewr dk Hkkj izkfEHkd rkSj ij ifjoknh ij gksrk gS] ftldks ^fpdRldh; ykijokgh* lkfer djuk gksrk gS rFkk tc ifjoknh ds }kjk og lewr Hkkj iw.kZ dj fy;k tkrk gS] rc mlds i'pkr~ gkWfLiVy o MkWDVj ij lewr dk Hkkj f'kV gksrk] ftuds }kjk ;g lkfer djuk gksrk gS fd mudh ns[kHkky esa] muds }kjk fd;s x;s vkWijs'ku es]a muds }kjk dh x;h tkap esa ,oa cjrj x;h lko/kkuh esa fdlh izdkj dh dksbZ pwd ugha gqbZ gS] tks fd gLrxr ekeys esa Li"V :i ls foi{khx.k gkWfLiVy o MkWDVj ds }kjk ejht dk vkWijs'ku djus] mls vkbZ-lh-;w- ls okMZ esa f'kV djus] nks fnu rd mls izksVksdkWy ds vuqlkj vkgkj nsus fQj mldh reh;r [kjke gksus ij mls vkbZ-lh-;w- esa f'kV djus] mldh tkapsa djus vkfn ds leLr nLrkost fjdKWMZ ij gSA 48- mYys[kuh; gS fd ifjoknh us tks nLrkost is'k fd;s] mudh izekf.kr izfrfyfi;ka Hkh mlh gkWfLiVy ls tkjh gqbZ gS vFkkZr~ foi{khx.k ds }kjk fdlh izdkj ds bykt ds dksbZ dkxtkr@nLrkostkr Nqik, ugha x, gSaA ifjoknh ds }kjk mu nLrkostksa dks izLrqr djuk vkSj muesa tks fV^aVesaV fd;k x;k] os Li"V vafdr gS] ftuls ;g Li"V ifjyf{kr gS fd foi{kh gkWfLiVy }kjk ejht dk D;k bykt fd;k x;k vkSj de&de ml ij /;ku dsafnZr fd;k x;k vkSj ejht dks iw.kZ LoLFk djus esa fdlh izdkj ls Hkzld iz;Ru fd;s x;sA 49- ;gka ;g mYys[kuh; gS fd ejht ds fir }kjk vius iq= dks eksVkis ds bykt ds fy, foi{kh gkWfLiVy esa ys tk;k tkus ij vkWijs'ku ls iwoZ HkrrhZ fd;k x;k] izksVksdkWy viuk;k x;k fQj vko';d gksus ij vkWijs'ku fd;k x;k] ftlds i'pkr~ fdlh izdkj dk isV esa dksbZ fjlo ugha ik;k x;k fQj mls izksVksdkWy ds vuqlkj vkgkj fn;k x;kA nks fnu ckn tc ejht dh reh;r [kjke gksus yxh rc mldh Hkh tkap dh x;h vkSj tc mu tkapksa ls fdlh fcUnq ij ugha igqapk x;k rks re-laparoscopy dh lykg ejht ds fir dks nh x;h] ftlds fy, igys ejht ds fir us lgefr nh ckn esa lgefr okil ys yh] ftl dkj.k ls og VsLV ugha gqvka blesa fdlh izdkj ls Hkh jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy flpZ baLVhV~;wV ,oa vU;

foi{khx.k dh vkWijs'ku ds i'pkr~ ykijokgh cjrj x;h gks] ,slk rF; Hkh ifjoknh us lkfer ugha fd;k gS vFkkZr~ foi{khx.k ds }kjk lHkh vko';d dne tks mBk;s tkus pkfg, Fks] mBk;s x;s gSaA 50- ;gka ;g rF; Hkh mYys[kuh; gS fd ifjoknh us ,l-,e-,l- gkWfLiVy ds ftl MkW- thou dkadfi;k dks ejht 'kSysUnz dks mldh fLFkfr fcxM+us ij cqyk;s tkus dk fuosnu fd;k] tks foi{kh gkWfLiVy ds }kjk Lohdkj fd;k tkdj ml MkWDVj dks cqyk;k x;k vkSj ifjoknh ds vuqlkj nks Vkads [kksydj tkap laHko gksus dk MkWDVj thou dkadfi;k }kjk lykg fn;k tkuk crk;kA 51- mYys[kuh; gS fd vius bu rF;ksa dks lkfer djus ds fy, MkW- thou dkadfi;k dk dksbZ 'kiFk&i= ifjoknh us vius ifjokn ds lkFk izLrqr gh ugha fd;k gSA ;g Hkh mYys[kuh; gS fd MkW- thou dkadfi;k us ifjoknh i{k dks ;g dgk gks fd foi{khx.k ds }kjk tks ejht dk cSfjV^ad ltZjh dk vkWijs'ku fd;k x;k] mlesa fdlh izdkj dh dksbZ [kkeh dh x;h gks vkSj vkWijs'ku lgh ugha fd;k x;k gks] ,slk dgk tkuk Hkh ugha ik;k x;k gSA MkW- thou dkadfi;k ds }kjk ifjoknh i{k dks ;g dgk x;k gks fd re-laparoscopy dh tkap fd;k tkuk vko';d ugha gS] ,slk rF; Hkh ifjokn esa ifjoknh i{k dh

vksj ls izLrqr ugha fd;k x;k gSA 52- blh izdkj ;g rF; Hkh mYys[kuh; gS fd foi{kh gkWfLiVy o MkWDVj ds }kjk fdlh izdkj dh dksbZ vkWijs'ku ;k vkWijs'ku ds i'pkr~ ns[kHkky esa deh dh x;h gks] bl gsrq esfMdy cksMZ ls tkap dj;k h x;h gks] ,slk rF; Hkh ifjoknh dk ugha ik;k x;k gSA 53- gLrxr i=koyh esa ejht dh e`R;q ds i'pkr~ mldk iksLVekVZe dj;k;k tdkj] ,Q-,l-,y- esa mldh foljk fHktok;h tdkj] fdlh urhtsa ij igqapk x;k gks ,oa mlesa e`R;q dk dkj.k nf'kZr gqv k gks] ,slk ifjoknh us dgha lkfer ugha fd;k gS] tcf d tks nLrkost fjdkWMZ ij gS] muds vuqlkj ejht dh e`R;q dk dkj.k Heart attack/respiratory failure gksuk] sepsis/septic shock ,oa multi organ failure gksuk crk;k x;k gSA jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdek nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

54- mYys[kuh; gS fd foi{kh la[k;k 2 MkWDVj eSfjFV^ad ltZjh dk fo'ks"kk uk jgk gks mls bl izdkj ds vkWijs'ku dk vuqHko u gks] ,slk rF; Hkh ifjoknh us dgha dFku ugha fd;k gS cfYd vkWijs'ku ls iwoZ dbZ ejhtksa ls feyok;s tkus dk rF; ifjoknh ds }kjk vafdr fd;k x;k gSA ejht ds fir k ds }kjk ftu nLrkostksa ij gLrk{kj fd;s x;s gSa os lgef r ds lac/a k esa nLrkost gS] mu ij ncko esa gLrk{kj fd;s x;s gks] ,slk rF; Hkh ekU; fd;s tkus ;ksX; ugha gSA jk=h esa ejht dks tks Heart attack vk;k rc mls 45 feuV rd lh-ih-vkj- fn;k x;k] mlds thou dks cpkus dk iz;kl fd;k x;k] os leLr vpkud gq, d`R; gS] blesa fdlh izdkj dh dksbZ ykijokgh foi{khx.k dh jgh gks] ;g rF; Hkh ekU; fd;s tkus ;ksX; ugha gSA 55- foi{khx.k ds }kjk bZykt vkjEHk djus ls iwoZ ls ysdj vkWijs'ku djus rd ,oa vkWijs'ku ds i'pkr~ izksVksdkWy ds vuqlkj ns[kHkky djus rd fdlh izdkj dh dksbZ dksrkbZ ejrh x;h gks] ;g fdlh iqf"Vdkjd lk{; ls ifjoknh us lkfer ugha fd;k gS vkSj uk gh dksbZ esfMdy cksMZ dh bl laca/k esa jk; izkIr dh x;h gS vFkkZr~ ejht dk bZykt xyr pyk gks ;k mlds vkWijs'ku ds ckn fdlh izdkj dh dksbZ ykijokgh ejrh x;h gks] ;g leLr rF; ifjoknh ds }kjk lkfer ugha fd;s tk lds gSaA 56- i=koyh esa tks izn'kZ vkj&2 nLrkost gS] mlesa ltZjh ds ckjs esa mlds fir k dks crk;s tkus dk rF; vafdr gS] ftlesa lHkh rjg dh tksf[ke vkfn crk;s x;s gaS] ftlesa ejht ds fir k }kjk gLrk{kj fd;s x;s gSa] blh izdkj izn'kZ vkj&3 nLrkost esa ,ufLFkfl;k dh vuqefr fn;s tkus] izn'kZ vkj&4 nLrkost esa BiPAP ejht }kjk uk fy;k tkus ij ifjoknh i{k dh ftEesokjh jgh gksus rFkk izn'kZ vkj&7 nLrkost ds vuqlkj fnukad 05-06-2018 dks 11%30 ,-,e- ij lgef r nsus vkSj 11%45 ,-,e- ij og lgef r Rdky gh okil ysus ij ejht dh isV dh leL;k okLro esa D;k jgh bl cker~ re-laparoscopy tkap ugha fd;s tk ldus ds tks nLrkost gS] os lHkh fjdkWMZ ij gS vFkkZr~ bu nLrkost ds voyksdu o foospu mijkar foi{kh MkWDVj o jkT; miHkksDrk vk;ksx] t;iqj ifjokn la[k;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdek nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

gkWfLiVy dh fdlh izdkj dh dksbZ ykijokgh vkWijs'ku ls iwoZ] vkWijs'ku ds le; vFkok vkWijs'ku ds i'pkr~ jgh gks] ,slk ifjoknh us tgka lkfer ugha fd;k gS] ogh izLrqr fV^aVesaV ds lHkh nLrkost ls foi{khx.k dh fdlh izdkj dh dksbZ fpfdRldh; ykijokgh Hkh nf'kZr ,oa lkfer gksuk ugha ik;h x;h gSA 57- tgka rd ifjoknhx.k dk ;g rdZ gS fd muds iq= dh e`R;q gksus ds i'pkr~ 2]00]000@&;i;s foi{khx.k }kjk teju olwy dh x;h] bl

laca/k esa tks i=koyh esa 'kiFk&i= gS] mlesa ejht ds firk rkjkpan ds }kjk 1]30]000@&;s gkWfLiVy dks vksj vnk djus dk vadu gS] ftlds fy, foi{khx.k dh vksj ls fn;s x;s 'kiFk&i= vuqlkj ejht dh cSfjV^{ad} ltZjh ds iSdst dh ykx esa 'kkfey lkr fnu ds vykok vfrfjDr lkr fnu rd ejht dks gkWfLiVy esa j[kuk iM+k vkSj vkWijs'ku ds ckn tks xaHkhj tfVyrk,a mRiUu gqbZ] mudh Hkh tkaps djuh iM+h muds ijh{k.k gq, vusd MkWDVjksa dks ns[kuk iM+k] ftlesa tks vfrfjDr ykx o Qhl vk;h] mlesa ejht dk vafre fey 5]12]025@&;s dk cuk] ml vafre fey esa 1]62]025@&;s dh ekuork ds ukrs NwV nsrs gq, dsoy 3]50]000@&;s dh jkf'k izkIr dh x;h] tks fd fnukad 07-06-2018 dk fey izn'kZ&vkj&10 gksuk crk;kA bl izdkj foi{khx.k ds }kjk tcju jkf'k olwy dh x;h gks] ,slk rF; Hkh ifjoknh i{k }kjk lkfer ugha fd;k tk ldk gS D;ksafd i=koyh esa mDr fey gSA 58-vr% mijksDr foospukuqlkj ifjoknhx.k }kjk izLrqr ifjokn fo:) foi{khx.k Lohdkj fd;s tkus ;ksX; ugha ik;k x;k gSA vkns'k vr% ifjoknhx.k Jherh rqylh f'koukuh ,oa vU; }kjk foi{khx.k larksdck nqyZHkth eseksfj;y gkWfLiVy] t;iqj ,oa vU; ds fo:) /kkjk 12 ,oa 17 miHkksDrk laj{k.k vf/kfu;e] 1986 ds rgr fnukad 13-08-2019 dks izLrqr ;g ifjokn Lohdkj fd;s tkus ;ksX; u gksus ls [kkfjt fd;k tkrk gSA ifjokn O;; i{kdkjku~ viuk&viuk ogu djsxsAa jkT; miHkksDrk vk;ksx] t;iqj ifjokn la;k 160@2019 Jherh rqylh f'koukuh ,oa vU;

cuke larksdck nqyZHkth eseksfj;y gkWfLiVy de esfMdy fjlPZ baLVhV~;wV ,oa vU;

$\frac{1}{4}d: .kk \ tSu\frac{1}{2}$	$\frac{1}{4}v: .k \ dqekj \ vxzoky\frac{1}{2}$
lnL;	lnL; $\frac{1}{4}U; kf; d\frac{1}{2}$

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